CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E17D02679
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
CONFIDENTIAL - SUBJECT TO PROTECTIVE ORDER

From: Mark Greenberg <mark.greenberg@enron.com>
Sent: Wed, 28 Mar 2001 05:02:00 -0800 (PST)
To: todd.creek@truequote.com, joe.wright@truequote.com
Cc: Bob Shults <bob.shults@enron.com>, Tana Jones <tana.jones@enron.com>
Subject: APB Agreements

Todd/Joe -

Thanks for the time earlier today on this matter. I know that both Bob and I appreciate your attention to these agreement.

Consistent with our conversation, I have made changes to both the Fee Agreement and BETA. I have attached marked versions of these documents reflecting my additional changes (all additions marked in caps and bolded). I have also attached "clean" drafts which incorporate all prior changes and reflect the last set of Enron additions in caps and bold.

On the Fee Agreement, two changes were made that were not discussed, both in relation to the Access Fee. I apologize for not having raised these points, but they were overlooked in my notes. The first of these changes is the deletion of the concept of a partial quarterly payment. The concept behind the Access Fee is that it is an annual fee that is to be collected at the time the Fee Agreement is signed; however, because of our negotiations, we are comfortable allowing the fee to be paid over the year in four equal installments. Accordingly, a partial payment should not occur as we are contemplating a contract running for a full calendar year.

Secondly, the last sentence of the Access Fee paragraph has been modified. It is intended by Enron that any entity who has signed a BETA is subject to paying an Access Fee. No subsidiary of APB should be signing a BETA unless a Fee Agreement has been completed.

Finally, in the interest of time, I am forwarding the attached without first having had Bob review the changes. If any additional changes need to be made based upon his review, I will let you know.

Please take a look at the attached at your earliest convenience and let either me or Bob know what, if any, additional comments or questions you may have.

Once again, thanks for the cooperation on this matter.

CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E17D02679
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
ENRON-423357533536

CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E17D02679
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
CONFIDENTIAL - SUBJECT TO PROTECTIVE ORDER

Mark
Senior Counsel, ENA
Phone: 713-345-8897
Facsimile: 713-646-3940
E-Mail: Mark.Greenberg@enron.com

CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E17D02679
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
ENRON-423357533536